

therefore took the legal estate upon the trusts of the will, the first of which was to pay the testator's debts. It is certainly not a little remarkable that after an examination of all the authorities upon the subject, there does not appear to be one in which the trustee has sold alone, without the concurrence of the executor. This circumstance may be easily accounted for, as trustees of the will are almost invariably appointed executors also, and where that is not the case, the purchaser naturally requires the concurrence of the executor, not on the ground that he is the vendor, but to satisfy the purchaser that the sale of the real estate is *bonâ fide* from the insufficiency of the personal assets. In some of the cases the Court has noticed, but not laid any stress upon, the circumstance of the personal representative concurring (*b*), or of the characters of trustee and personal representative being combined; but in others that fact has been passed over in silence as a mere accident, and the Court has relied on the general doctrine that a trustee of the estate charged with debts could sell and sign a valid discharge for the purchase-money (*c*). In *Doe v. Hughes* (*d*), the case most adverse to the powers arising from a charge of debts, it was admitted that by a devise to *trustees* of the real estate, subject to a charge of debts, the trustees had thereby imposed upon them the duty of raising the money to pay the debts, and this was the opinion of Lord Hardwicke, as expressed in a case which we do not remember to have seen cited. In *Ex parte Turner* (*e*), where the estate had been given subject to debts, but no express trust was created for *the [*463] purpose, he observed, "Where a devise is general

(*b*) See *Shaw v. Borrer*, 1 Keen, 559; *Forbes v. Peacock*, 12 Sim. 537; and see V.C. Knight Bruce's remarks upon *Shaw v. Borrer*, and *Ball v. Harris*, in *Gosling v. Carter*, 1 Coll. 649. But in *Ball v. Harris*, the V. C. of England observed, "It is manifest that Harris (the trustee), who had the legal fee was competent to mortgage that estate to any person who would advance money for the benefit of the testator's estate," 8 Sim. 497;

and it is equally clear that Lord Cottenham was of opinion that Harris was a trustee for payment of debts, 4 M. & Cr. 267.

(*c*) See *Ball v. Harris*, at the passages referred to in the preceding note; *Forbes v. Peacock*, 12 Sim. 546.

(*d*) 6 Exch. 231.

(*e*) 9 Mod. 418; and see *Colyer v. Finch*, 5 H. L. Cas. 922.